

Hed: Want to know what your local government is spending opioid settlement funds on? Use a West Virginia University student journalist's investigation as your guide

Dek:

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Across the United States, states and local governments are receiving [billions of dollars](#) from legal settlements with opioid manufacturers, distributors and retailers. These settlements stem from lawsuits showing the companies contributed to the opioid epidemic through aggressive marketing, distribution practices and failure to monitor suspicious orders.

The settlement agreements are expected to distribute more than [\\$50 billion](#) nationally over nearly two decades, with funds flowing to states, counties, cities and tribal governments.

Many communities hope these funds will support treatment programs, prevention efforts, recovery services, harm reduction initiatives and other public health responses. However, transparency around how these funds are spent varies widely. In many places, the decision-making process happens at the local level, often with limited reporting requirements or public oversight.

This guide explains how journalists can use public records requests, document analysis and collaborative reporting methods to track how opioid settlement funds are allocated and spent in their communities.

Use an investigation into West Virginia's opioid settlement spending as your guide

The methods outlined here are based on a [multi-month investigation that examined settlement spending across West Virginia's 55 counties](#) using public records requests.

While the specific laws and procedures vary by state, the reporting framework described here can be adapted to investigate settlement spending anywhere in the country.

The opioid settlement funds represent one of the largest public health financial responses in recent history. Following years of litigation against pharmaceutical companies, distributors and retailers, governments across the United States are receiving billions of dollars intended to address the opioid crisis.

To start, you can explore how much money has been allocated to your state using [the Opioid Settlement Tracker](#).

In many states:

- Counties and cities receive direct settlement allocations

- Local officials determine how funds are spent
- Reporting requirements vary or may be minimal
- Public documentation of spending decisions is inconsistent

While many states have developed advisory councils or general spending guidelines, there is little consistent oversight over how funds are used at the local level. This lack of standardized transparency creates challenges for journalists and the public trying to understand whether funds are being used for evidence-based solutions, but also **creates an opportunity to watchdog** how local governments spend a very important pot of money.

Investigating settlement spending can reveal the gaps between what's happening and what should happen:

- How local governments prioritize prevention, treatment or enforcement
- Whether funds are spent on programs supported by research
- Whether spending decisions are made transparently
- Whether funds are redirected toward unrelated expenses

Because settlement payments will continue for years, early reporting can help establish accountability and encourage more transparent decision-making going forward.

Curious about what you'll get out of requests for spending documents? Check out what we've received from West Virginia's towns, cities and counties.

Explore West Virginia's spending documents and applications

West Virginia's opioid settlement spending documents and applications	
Search in table Page 1 of 5 >	
Local government	Spending documents
Addison	Read the documents
Anmoore Town	Read the documents
Barbour County	Read the documents
Barboursville	Read the documents
Belington	Read the documents
Belle Town	Read the documents
Berkeley County	Read the documents
Boone County	Read the documents
Braxton County	Read the documents
Brooke County	Read the documents
Cabell County	Read the documents
Calhoun County	Read the documents
Ceredo City	Read the documents
Chester City	Read the documents
Clay County	Read the documents

Requesting records on opioid settlement spending

Public records laws allow journalists and members of the public to request documents from government agencies, including their documentation of the opioid settlement funds they've received and how they're spending them.

At the federal level, these laws fall under the Freedom of Information Act (FOIA); however, most records related to opioid settlement spending are held by state and local governments, which operate under state-level open records laws.

These laws vary widely across states. Some states have strong transparency protections, clear deadlines and limited exemptions. Others have weaker laws, slower response timelines or broader exemptions.

To learn the specific rules in your state, consult resources such as:

- [Investigative Reporters and Editors \(IRE\) FOIA resources](#)
- State press association open records guides
- [Reporters Committee for Freedom of the Press open government guide](#)

Understanding your state's law will help you determine how long agencies have to respond to requests, what fees, if any, they can/may charge for the documents, what exemptions they may claim and whether you can appeal the denial of records.

Investigating opioid settlement spending begins with requesting documents that show both how much funding governments have received and how decisions about spending are made.

Municipal and county governments often hold many of the most important records related to settlement spending, including:

- Budget documents
- Contracts with treatment providers
- Grant applications
- Meeting minutes
- Financial ledgers
- Checks or payment records
- Emails discussing allocations

Accessing these records allows reporters to reconstruct how settlement funds are being distributed and used.

Troubleshooting with Muckrock

Not every county or local agency will already exist in MuckRock's system, and some agencies may not respond to requests submitted through the platform.

If an agency is not already listed in MuckRock:

- Search carefully for variations of the agency name before creating a new entry
- Verify which office actually maintains the records, such as the county commission, clerk's office or administrator's office
- Add the agency manually using publicly available contact information if necessary

If this happens, requests can still be tracked and published through MuckRock even if communication occurs outside the platform.

When agencies fail to respond:

- Send follow-up emails referencing the original request and submission date
- Call the agency directly to confirm the request was received
- Ask whether clarification or narrowing of the request is needed
- Keep detailed notes of all communication attempts and response dates

The MuckRock support team can also assist reporters throughout the request process. During the West Virginia investigation, the support team helped:

- Locate or verify agency contact information
- Add counties or offices that were not already listed in the system
- Troubleshoot delivery or submission issues
- Update request routing when agencies redirected requests to another office
- Provide guidance on how to proceed when agencies stopped responding

MuckRock staff may also suggest:

- Alternative agency contacts
- Different methods of submission
- Ways to revise or narrow requests to improve response rates

For large collaborative investigations involving many jurisdictions, this support can help reporters maintain consistency and avoid delays caused by incorrect contact information or administrative issues.

Tracking follow-ups is especially important when requesting records from multiple jurisdictions. During the West Virginia investigation, several counties only responded after repeated follow-up emails or phone calls.

In some cases, delays or refusals to provide records may themselves become part of the reporting process, particularly when agencies overseeing significant public funding provide limited transparency.

Common problems

Although opioid settlement records are considered public documents, accessing them is not always straightforward. During the months of the West Virginia investigation, the records request process varied significantly from county to county and some jurisdictions were more transparent and organized than others.

One of the most common problems faced was simply receiving a response. Some counties:

- Did not respond to requests at all
- Required multiple follow up emails and phone calls
- Delayed responses beyond expected timelines
- Redirected requests between offices or departments

In some cases, counties refused to use Muckrock and instead required requests to be submitted through direct email or standard mail. Other counties required reporters to:

- Travel in person to review records
- Pay fees for copies of documents
- Review paper records instead of digital files
- Pick up records physically rather than receive them electronically

Records were also purchased from several counties, including:

- Kanawha County
- Harrison County
- Hancock County

Another challenge involved the records themselves. Public records responses rarely arrived in a consistent or organized format. Documents were often spread across multiple PDFs, scans or paper files with little explanation or labeling. Many records were handwritten, scanned poorly or incomplete, requiring significant cleanup and organization before analysis could begin.

What's in the data – and how to get it

During our investigation of settlement spending across West Virginia, we used a standardized public records request sent to each county. Using consistent request language made it easier to compare responses across jurisdictions and organize records once they were received.

We asked for documents that showed:

- The total amount of opioid settlement funds received
- How those funds were allocated or distributed
- The process used to determine funding decisions
- Which programs or organizations received settlement dollars

Sample Request Language

The following language can be adapted for most state or local open records laws:

Please provide any and all documents relating to the following:

1. The total amount of opioid settlement funds your office has received.
2. Documentation showing the distribution or allocation of opioid settlement funds.
3. Any guidelines, policies or procedures used to evaluate requests for funding.
4. Documentation describing how applications for settlement funding are reviewed or approved.

Because recordkeeping practices vary widely, reporters may also need to request additional materials that provide context for how decisions are made. These may include:

- Grant or funding applications submitted by organizations
- Meeting minutes where settlement spending was discussed
- Emails or correspondence between officials about allocations

- Records showing which organizations received funding and how much

During our investigation, public records responses arrived in many different formats. Examples of documents we received included:

- [Budget documents outlining settlement allocations](#)
- [Physical ledgers](#)
- [Receipt forms](#)
- [Scanned financial ledgers and checks](#)
- [Meeting minutes discussing settlement spending](#)
- [Applications with local organizations](#)
- [Project outlines](#)

These records often arrived without standardized formatting and required significant organization before they could be analyzed.

When requesting records from multiple counties or cities, it can be helpful to track requests in a spreadsheet documenting submission dates, response deadlines, and whether agencies fulfilled, denied or delayed requests. This allows reporters to identify patterns in transparency and compare spending decisions across jurisdictions.

Because opioid settlement payments will continue for many years, these records provide an opportunity for journalists to monitor how funds are used and whether spending aligns with public health recommendations.

Strategies for organizing and sorting documents

Public records responses often arrive in many formats and can be difficult to interpret. During our investigation, we received a wide range of materials, including:

- Scanned financial ledgers
- Individual checks
- Budget spreadsheets
- Meeting minutes
- Contracts and grant agreements
- Emails between officials

These records were rarely standardized and often required significant organization before analysis.

Strategies for managing large document sets

To make sense of large document collections, it can help to:

- Create a central document storage system; [we used DocumentCloud](#)
- Label files consistently by jurisdiction and document type. We did this by using DocumentCloud's [tags and key-value pairs feature](#)
- Track where each document came from
- Record key information in a spreadsheet or database

DocumentCloud

For example, you may want to log:

- Agency name
- Amount of settlement funding received
- Allocation decisions
- Program descriptions
- Date of spending approval

[Screenshot of student's FOIA tracking spreadsheet as example?]

Using DocumentCloud

This process of uploading and tagging documents is providing key data to journalists around the state and even the country. Reporting on county-level spending has been very small and without the work of this process some of this data could have been lost in the weeds. Many newspapers and news outlets do not have the resources, staff, or time to report on state, county, and city/municipality Opioid Settlements Funding.

A 'tag' is a specific search key term that can be added to individual documents to make it easier to search for specific information as well as keeping all received documents organized by municipality, county or city. That way, when searching for a county's specific documents, only those tagged with that county will come up.

Once a document has been uploaded, simply click on it then select the tagging option.

The screenshot shows the DocumentCloud interface. The top navigation bar includes 'DocumentCloud', 'Documents', and the document title 'email response, Clendenin, Kanawha'. The left sidebar has a 'Tags & Data' tab highlighted with a red circle. The main document area displays a letter from the Town of Clendenin, West Virginia, dated January 27, 2026. The letter is addressed to Jessica Riley at MuckRock News. The right sidebar contains options for 'Edit Document Metadata', 'Revision History', 'Reprocess', 'Delete', and 'Change owner'. At the bottom, there are 'Sections' and 'Page' navigation controls.

DocumentCloud Documents email response, Clendenin, Kanawha West Virginia University Investigative Reporting Jessica Riley US Feedback

email response, Clendenin, Kanawha Public

File Text Pages Notes Annotate Redact Search

Tags & Data EDIT

Use tags or key/value data to organize documents

Notes

Add notes to highlight and comment on your document

Annotate this Document

p. 1 SHARE ADD A PAGE NOTE START SECTION

Kay M. Summers
Mayor

Jason E. Mace
Chief of Police

Erica Kearns
Recorder

Councilmembers
Tim Allen
Scott Bird
David Canterbury
Scott Deussenberry
Dave Knight

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West Virginia
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"Clendenin's Beauty is Everyone's Duty"

103 First Street
P.O. Box 694
Clendenin, WV 25045

PH 304-548-4192
FAX 304-548-4134

Law Enforcement
Non-Emergency
304-348-8111

Emergency
Dial 9-1-1

January 27, 2026

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created on
4/15/2026

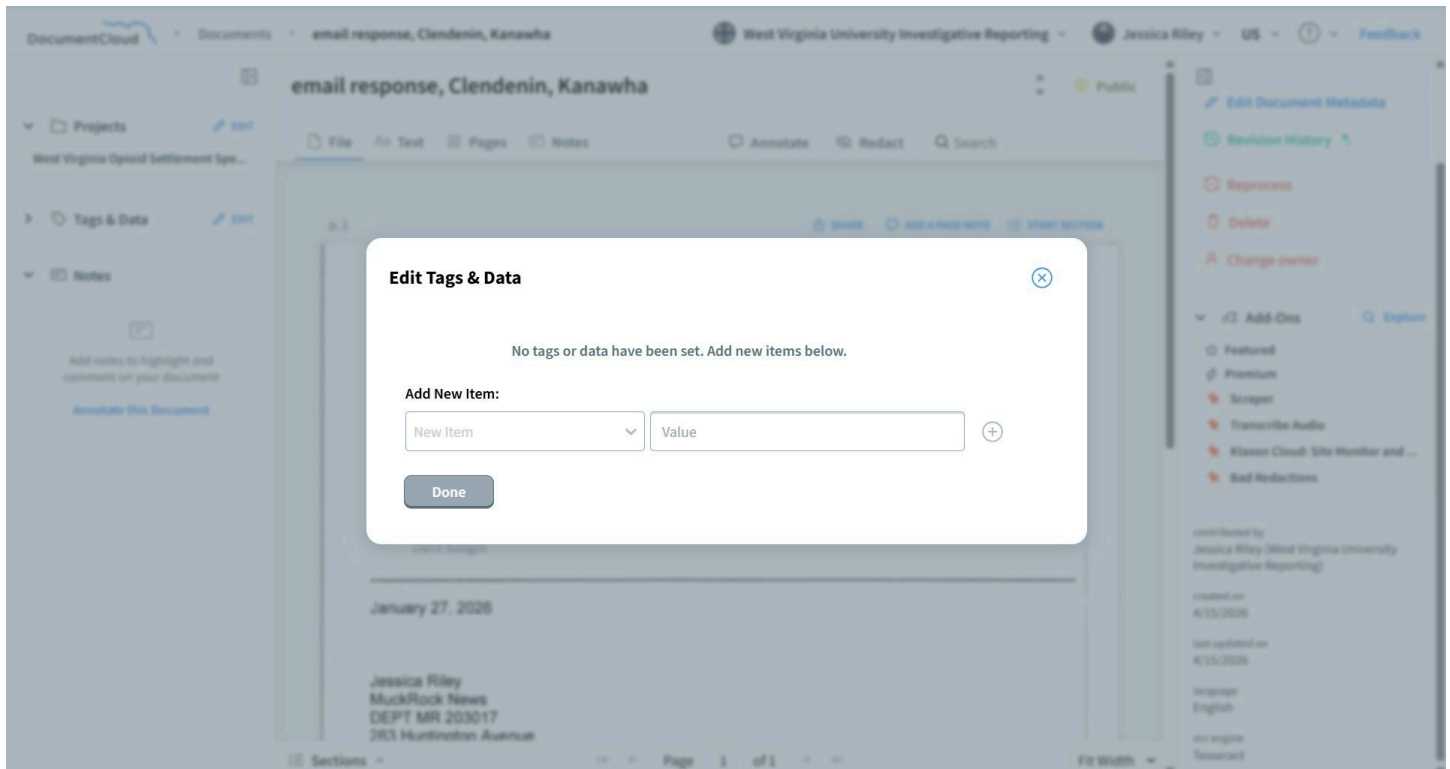
last updated on
4/15/2026

language
English

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Sections Page 1 of 1 Fit Width

Then put county or city in the 'new item' box and city/county name in the value box.



Turning documents into data

Many investigative projects require converting unstructured documents into structured data.

This process may involve:

- Manually reviewing financial records
- Extracting spending amounts
- Categorizing spending by program type
- Comparing spending patterns across jurisdictions

While time-consuming, this process allows reporters to identify patterns, inconsistencies or unexpected spending decisions.

Reporting threads and investigative angles

Once records are collected and organized, several potential reporting angles may emerge.

How funds are allocated

Investigate how local governments decide where settlement funds should go. Key questions include:

- Who participates in spending decisions?
- Are advisory boards involved?
- Are decisions documented in public meetings?

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In the West Virginia investigation, reporting examined how counties distributed settlement funds to local organizations and community initiatives, as well as how those decisions were approved.

Evidence-based spending

Public health experts have identified several strategies supported by research, including treatment programs and harm reduction services.

Reporting can examine whether spending aligns with these recommendations.

Reporting can examine:

- Whether funded programs are supported by evidence
- Whether programs measure outcomes or effectiveness
- How officials justify funding decisions

For example, reporting during the investigation examined youth prevention programs funded with opioid settlement dollars and explored whether experts considered those programs evidence-based.

Transparency and oversight

Investigate whether local governments publicly report:

- Settlement allocations
- Spending decisions
- Program outcomes

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- Settlement allocations
- Spending decisions
- Program outcomes

In some counties, records were difficult to access or inconsistently organized, raising broader questions about transparency and oversight surrounding public health funding.

Differences across jurisdictions

Comparing spending patterns between counties or cities may reveal differences in priorities or approaches.

Administrative spending

Some jurisdictions may allocate settlement funds toward administrative costs or enforcement initiatives. Investigating these allocations can reveal how governments interpret settlement guidelines.

Investigating these allocations can reveal:

- How governments interpret settlement guidelines
- Whether spending aligns with public health recommendations
- Whether settlement dollars are being redirected away from direct services

During the West Virginia investigation, some counties prioritized prevention and treatment programs, while others focused funding on law enforcement, administrative costs or infrastructure projects.

Comparisons across jurisdictions can help reporters identify:

- Regional spending trends
- Uneven access to services
- Different interpretations of settlement guidelines

Records into Stories

Public records investigations are not only about collecting documents, they are about identifying patterns and connecting records to real-world impact.

The West Virginia investigation produced stories examining:

- Youth prevention and education programs
- Questions about evidence-based spending
- County level transparency and accountability
- Differences in how communities prioritized settlement funding
- The challenges of tracking public health dollars across multiple jurisdictions

As records are reviewed, reporters should think critically about what the documents reveal, what questions remain unanswered and how spending decisions affect local communities.

Frequently Asked Questions

Where can I review the stories published about West Virginia's settlement spending?

These stories were published by 100 Days in Appalachia, and [you can find them in the Price of Recovery series](#).

What counts as a public record?

Generally, records created or maintained by government agencies while conducting official business are considered public records. This may include emails, financial records, meeting minutes and contracts.

How long does it take to receive records?

Response timelines vary by state. Some agencies respond within a few days, while others may take weeks or months, depending on the request scope.

What if agencies don't have organized records?

In some cases, agencies may not maintain clear documentation of spending decisions. This itself may become a reporting finding, highlighting gaps in transparency or recordkeeping.

What if my request is denied?

If an agency denies your request, ask them to cite the specific legal exemption being used. You may be able to:

- Narrow the request
- Request partially redacted documents
- File an appeal under your state's open records law

What if the municipality or county says they haven't spent any of the money?

Then you have a great story! As of March 2026, we are nearly four years into the process of distributing funds. What is keeping the entity from spending them? Is it a lack of knowledge of what to spend it on? Guidance from a state or federal agency? A lack of local resources to plan for spending? The opportunity is ripe for finding out *why* they haven't spent any funds then asking experts in your community (both medical/academic and people with lived experience) *how they should* spend it.

My state has funding and a separate process for distributing the funds. What's the difference between that and the county/municipality?

The difference is solely who holds it and who gets to spend it. Many states, like West Virginia, created state-level nonprofits to distribute state-level funds or have given the responsibility to a specific state entity (like a certain department, agency or office). Those funds come from the same sources, but typically, state entities have more resources to determine where and how and how much to spend. Many municipalities and counties – in particular in rural parts of our country – do not have the same bureaucratic infrastructure. That's why coverage of *local funds* is 1. Critical and 2. Ripe for deep dive data reporting.

Can I review the West Virginia documents?

Yes! All of our documents are available on Document Cloud. You can find them by searching West Virginia Opioid Settlement Spending or [visiting the DocumentCloud project page](#)

I'm a journalism instructor or student newsroom leader who would like to replicate this process in my classroom/newsroom. Do you have any help for me?

Yes! We are turning all of our work into a curriculum for college classrooms. It will be fully complete by May 2026, but there are materials available for you right now to begin planning. Reach out to Ashton Marra directly for more: amarra3@mail.wvu.edu